

Court No. - 37

Case :- WRIT - C No. - 55193 of 2012

Petitioner :- Mahendra Nath @ Mahendra Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Prabhat Agarwal

Respondent Counsel :- C.S.C., Amrit Lal Yadav

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Heard learned counsel for the petitioner; Shri Amrit Lal Yadav, learned counsel appearing for the respondent no. 3 and learned Standing Counsel, appearing for the respondent nos. 1 and 2.

By this writ petition, the petitioner has prayed for quashing the citation dated 16.8.2012 for recovery of amount of Rs. 57,495/- as electricity dues.

Learned counsel for the petitioner submits that electricity bills which were received by the petitioner were exorbitant and he requested to get the electricity meter checked.

The prayer in this writ petition cannot be granted as neither there is any challenge to the citation nor bills submitted by the department has been brought on the record and the prayer has been made for quashing the citation. We do not find any good ground to quash the citation in the writ petition. However, it is open for the petitioner to taken such steps as provided under the U.P. Electricity Supply Code 2005 regarding the incorrectness of the bills, if any.

With the aforesaid observation, the writ petition is dismissed.

Order Date :- 18.10.2012

Sunil Kr. Gupta